

MAY 18, 2026
Dept. 9
Probate Tentative Rulings

11.	25PR0305	ESTATE OF ABRAHAMSON
Petition to Determine Succession to Real Property		

Decedent died on December 25, 2019. This Petition is filed by Myrna Lunceford and Deborah Land, who are presumably decedent's siblings, pursuant to Probate Code § 13150 et seq. That statute allows the Court to determine succession to real property outside of probate for real property that is valued at less than \$166,250 for a decedent who died prior to April 1, 2022. The Petition indicates that the decedent died intestate with no surviving parents, children or spouse, and that no probate was opened for the estate.

Item 14 of the Petition indicates that the names of decedent's siblings are attached to the Petition but no such attachment is included with the filed document. The Petition indicates that the value of decedent's real property is less than the limit for a small estate. Probate Code § 13151. However, the Petition does not attach an inventory and appraisal (Judicial Council Forms DE-160, DE-161), nor does the Petition identify the real property, as required by the statute. Probate Code § 13152.

The matter was heard on December 29, 2025, but there were no appearances. The Court continued the matter to allow the Petitioners an opportunity to conform the Petition to the requirements of Probate Code § 13152. At the hearing on March 16, 2026, counsel for Petitioners appeared and the Court continued the matter.

At the hearing on April 6, 2026, counsel requested a continuance.

Nothing new has been filed since the original pleading. This is the fourth hearing on the Petition. The deficiencies outlined have still not been cured, with no reasonable explanation for why these simple requirements have not been met. Petition denied without prejudice.

TENTATIVE RULING #11:

PETITION DENIED.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.